

Law of Tort Including MV Accident and Consumer Protection Laws

Unit – I

◆ 1. Meaning and Origin of Tort

The word “**Tort**” has been derived from the **Latin** term “*Tortus*”, which means **twisted or crooked**. It refers to a **wrongful act** that is **not a crime** or **breach of contract**, but one that results in **legal liability**.

Tort = Civil wrong (not arising out of a contract) = legal remedy (usually damages)

◆ 2. Definition of Tort

Several jurists have defined Tort:

✓ **Salmond:**

"A tort is a civil wrong for which the remedy is a common law action for unliquidated damages, and which is not exclusively the breach of a contract or the breach of a trust or other merely equitable obligation."

✓ **Winfield:**

"Tortious liability arises from the breach of a duty primarily fixed by the law; such duty is towards persons generally, and its breach is redressable by an action for unliquidated damages."

✓ **Key Point:** *Tort is a civil wrong where the injured party can sue for damages, and the wrongdoer is liable to compensate.*

◆ 3. Nature of Tort

Tort law is part of **civil law**. It deals with **compensation** for wrongs done by one person to another.

Nature of Tort:

- It is **civil** in nature (private wrong).
- The injured party files a **civil suit** in court.
- Relief is mostly in the form of **monetary compensation** (damages).
- It is based on the principles of **equity, justice, and good conscience**.

◆ 4. Essential Elements of Tort

To establish a tort, **three essential elements** must be present:

✓ **1. Wrongful Act or Omission**

- The act must be **legally wrongful**.
- A violation of legal duty owed by the defendant to the plaintiff.
- It can be an **act (doing something)** or **omission (not doing something when duty exists)**.

✦ *Example:* Not putting a wet floor warning sign and someone slips — omission.

✓ **2. Legal Damage (Injury)**

- There must be **violation of a legal right**, not necessarily actual harm.
- Two types:
 - **Injuria sine damno** – *Violation of a legal right without actual damage.*
 - **Damnum sine injuria** – *Actual damage without violation of legal right.*

 **Case Law: Ashby v. White (1703)**

- The plaintiff was wrongfully denied the right to vote.
- No actual loss, but his **legal right was violated**.
- Held: **He was entitled to damages**.

✅ 3. Legal Remedy (Action for Unliquidated Damages)

- The injured party must have a **right to sue in a court of law**.
- Remedy is generally in the form of **unliquidated damages** (not pre-fixed).
- Damages are decided by the **court based on the circumstances**.

🔴 *Example:* Compensation in a motor accident or defamation suit.

♦ 5. Distinction Between Tort and Other Wrongs

	Basis	Tort	Crime	Breach of Contract
Nature		Civil Wrong	Public Wrong	Civil Wrong
Remedy		Compensation (Damages)	Punishment (Fine/Jail)	Compensation (As per contract)
Duty		Towards general public	Towards state/society	Towards specific person
Suit		By affected person	By state	By contracting parties

♦ 6. Objectives of Tort Law

- To **compensate** the injured person.
- To **deter** wrongful conduct.
- To provide **justice** through civil process.
- To promote **respect for rights** of others.

♦ 7. Important Case Laws to Remember

Case Name	Principle Established
Ashby v. White (1703)	Injuria sine damno (legal right violated)
Gloucester Grammar School Case (1410)	Damnum sine injuria (no remedy for mere loss without legal right violation)
Donoghue v. Stevenson (1932)	Duty of care in negligence — famous “neighbour principle”
Rylands v. Fletcher (1868)	Strict liability for dangerous things brought onto land

♦ What is Meant by “Scope” of Law of Tort?

The **scope of the law of tort** refers to the **range of wrongs** covered under tort law, the **variety of interests it protects**, and the **remedies it offers**. Tort law plays an important role in **protecting individual rights, ensuring accountability, and compensating the injured party**.

♦ Areas Covered under Tort Law

Tort law is **broad and dynamic**. It includes (but is not limited to) the following areas:

1. Negligence

- Failure to take reasonable care resulting in harm to another.
- Includes **road accidents, medical negligence, construction accidents**, etc.

Case Law: Donoghue v. Stevenson (1932)

- A woman found a snail in a ginger beer bottle.
- Laid the foundation of modern negligence law.
- Introduced the “**Neighbour Principle**” – one must take care to avoid acts that may harm their “neighbours”.

2. Nuisance

- Unlawful interference with a person's use or enjoyment of land.
- Two types: **Public nuisance** and **Private nuisance**.

Case Law: Halsey v. Esso Petroleum (1961)

- The defendant's factory caused noise, smell, and smoke.
- Held liable for private nuisance.

3. Defamation

- Injury to a person's reputation.
- Two types:
 - **Libel** – written or published.
 - **Slander** – spoken.

Case Law: Dixon v. Holden (1869)

- Defamation through false statement; plaintiff awarded damages.

4. Trespass

- Direct, intentional interference with another's person, goods, or land.
 - **Trespass to person** – assault, battery, false imprisonment.
 - **Trespass to land** – unauthorized entry.
 - **Trespass to goods** – wrongful interference with possessions.

Case Law: Bird v. Jones (1845)

- Defined **false imprisonment** as total restraint on a person's liberty.

5. Strict Liability & Absolute Liability

- Liability without fault.
- Applies to dangerous substances or hazardous activities.

Case Law: Rylands v. Fletcher (1868) – strict liability rule.

 Case Law: M.C. Mehta v. Union of India (1987) – introduced **absolute liability** in Indian law after the **Oleum gas leak** in Delhi.

6. Vicarious Liability

- When one person is held liable for the wrongful acts of another.
- Common in **employer-employee** relationships.

Case Law: State of Rajasthan v. Vidhyawati (1962)

- Government held liable for negligent driving by its employee.

7. Consumer Protection

- Tort principles are used in **Consumer Protection Laws** to deal with defective goods or deficient services.

Case Law: Indian Medical Assn. v. V.P. Shantha (1995)

- Medical services brought under Consumer Protection Act.

◆ Importance of Tort Law in Modern Times

- **Protection of Individual Rights** – life, reputation, property, privacy.
- **Compensation to Victims** – road accidents, medical negligence, defamation, etc.
- **Control of Power and Influence** – over large corporations or state authorities.
- **Development of Social Standards** – through recognition of new torts like **privacy breaches, toxic torts, cyber torts**, etc.

◆ Application of Tort Law in India

Though India does not have a **codified law of torts**, it is recognized and enforced under:

- Common Law principles (British origin)
- Judicial decisions
- Statutory laws (like Consumer Protection Act, Motor Vehicles Act, etc.)

Indian courts apply tort principles in:

- Motor accident compensation
- Medical negligence
- Environmental pollution
- Custodial violence
- Consumer cases

◆ Emerging Areas Under Tort Law

Emerging Area	Description
Cyber Torts	Online defamation, identity theft, data breach.
Environmental Torts	Pollution, hazardous waste, industrial disasters.
Product Liability	Defective or harmful consumer goods.
Torts Against Women	Harassment, domestic violence (also dealt by statutes).

Difference Between Tort and Crime

◆ Introduction

Both tort and crime involve wrongful acts, but they are fundamentally different in terms of their nature, consequences, remedies, and legal proceedings.

Understanding the difference is crucial for separating civil liability from criminal liability.

◆ Meaning of Tort

A Tort is a civil wrong that causes harm or loss to an individual, for which the injured party can claim monetary compensation.

🔴 *Example:* If A negligently drives and injures B, B can sue A for damages in tort.

◆ Meaning of Crime

A Crime is a wrong against the society as a whole. It is prosecuted by the state, and the offender may be punished by fine, imprisonment, or both.

🔴 *Example:* Theft, murder, and assault are all criminal offenses prosecuted by the state.

◆ **Key Differences Between Tort and Crime**

Basis	Tort	Crime
1. Nature	Civil wrong	Public wrong
2. Purpose	To compensate the injured party	To punish the offender and protect society
3. Duty	Owed to a specific person (individual rights)	Owed to the society/state as a whole
4. Who initiates case?	Injured person (plaintiff)	Government/Public Prosecutor
5. Remedy/Punishment	Monetary compensation (damages)	Punishment – imprisonment, fine, or both
6. Intention (Mens rea)	Not always required (e.g., negligence)	Generally essential (except in strict liability crimes)
7. Legal proceeding	Civil court	Criminal court
8. Compromise	Allowed between parties	Generally not allowed (especially in serious crimes)
9. Examples	Defamation, trespass, negligence	Theft, murder, rape, kidnapping
10. Standard of proof	Preponderance of evidence (less strict)	Beyond reasonable doubt (strict standard)

◆ **Example for Clear Understanding**

✅ **Tort Example:**

- A landlord carelessly leaves the staircase wet.
- Tenant slips and breaks a leg.
- Tenant files a civil suit for compensation → Tort.

✅ **Crime Example:**

- A person intentionally stabs another person.
- State files a criminal case → Crime.
- Punishment may include imprisonment and fine.

◆ **Case Law Reference**

📖 **R. v. Dudley and Stephens (1884)**

- A criminal case where murder was committed under necessity.
- The state prosecuted the case, and the accused were punished.
- Demonstrates public wrong and punishment.

Ashby v. White (1703)

- A tort case where the plaintiff was denied the right to vote.
- No crime, but a civil remedy was granted.

Unit – I: Difference Between Tort and Contract

◆ Introduction

Both **tort** and **contract** are part of **civil law**, but they differ in many fundamental ways such as **origin of duty**, **consent**, **remedies**, and **rights involved**.

Understanding the difference helps in identifying the **source of legal liability**—whether it arises from a **voluntary agreement (contract)** or an **unlawful act (tort)**.

◆ Meaning of Tort

A **Tort** is a **civil wrong** that occurs when a person breaches a **duty imposed by law** and causes harm to another, leading to **legal liability**.

✦ *Example:* A driver negligently injures a pedestrian.

◆ Meaning of Contract

A **Contract** is an **agreement** between two or more parties that is **legally enforceable**. Breach of contract occurs when one party **fails to perform** their agreed obligation.

✦ *Example:* If a seller fails to deliver goods as agreed, it amounts to breach of contract.

◆ Key Differences Between Tort and Contract

Basis	Tort	Contract
1. Nature of Obligation	Duty imposed by law	Duty arises by agreement between parties
2. Consent	No consent involved	Based on mutual consent
3. Relationship	No prior relationship needed	Exists due to a contractual relationship
4. Rights Violated	Right in rem – against the world	Right in personam – against a specific person
5. Remedy	Generally unliquidated damages	Generally liquidated damages or as per contract terms
6. Intention	May be intentional or unintentional	Must involve intention to create legal relations
7. Aim	To compensate for harm	To enforce a promise or seek performance/compensation
8. Limitation Period	Usually shorter (varies by country)	Often longer than tort-related claims
9. Privity of Contract	Not required – anyone injured can sue	Required – only parties to contract can sue

◆ Example for Better Understanding

Tort Example:

- A shopkeeper carelessly leaves water on the floor.
- A customer slips and gets injured.
- No contract exists, but shopkeeper is liable under **law of tort (negligence)**.

✔ Contract Example:

- You sign a contract with a painter to paint your house by 1st August.
- Painter does not turn up.
- You can sue him under **law of contract** for **breach of contract**.

◆ Case Laws

Donoghue v. Stevenson (1932)

- Landmark case in tort (negligence).
- No contract between the manufacturer and the consumer, yet duty of care existed.

Carlill v. Carbolic Smoke Ball Co. (1893)

- Landmark case in contract law.
- A general offer made to public created contractual liability once conditions were fulfilled.

Unit – I: Difference Between Tort and Quasi-Contract

◆ Introduction

Both **Tort** and **Quasi-Contract** deal with **civil liability**, but they are **different in origin, nature, and remedy**. Tort is based on a **wrongful act**, while a quasi-contract is based on **equity** and **unjust enrichment**.

◆ What is a Tort?

- A **tort** is a **civil wrong** where one person breaches a **duty imposed by law** and causes harm to another.
- The main aim is to **compensate** the injured person.

✦ *Example:* If A damages B's car by careless driving, B can sue A in tort for damages.

◆ What is a Quasi-Contract?

- A **quasi-contract** is **not a real contract** but a legal **obligation imposed by law** to prevent **unjust enrichment**.
- It applies when one person benefits unfairly at the expense of another, even though no formal agreement exists.

✦ *Example:* If A pays B's electricity bill by mistake, B must repay A under quasi-contract.

◆ Key Differences Between Tort and Quasi-Contract

Basis	Tort	Quasi-Contract
1. Nature	Civil wrong	Legal obligation (not a real contract)
2. Origin of Duty	Arises from duty imposed by law	Arises to prevent unjust enrichment
3. Relationship	No prior relationship needed	Arises when one party benefits at another's expense
4. Consent	No consent involved	No consent involved
5. Objective	To compensate for wrongful injury	To restore benefit unjustly received
6. Type of Liability	Based on wrongful conduct	Based on equity and fairness
7. Example	Defamation, negligence, trespass	Mistaken payment, finder of goods

Basis	Tort	Quasi-Contract
8. Remedy	Unliquidated damages (as decided by court)	Liquidated or specific repayment
9. Governing Principle	Common law and judicial decisions	Sections 68 to 72 of the Indian Contract Act, 1872

◆ Examples to Clarify

✔ Tort:

- A throws garbage in B's property.
- B suffers harm and sues for damages.

✔ Quasi-Contract:

- A accidentally transfers ₹5,000 to B's bank account.
- B is legally bound to return the money.

◆ Legal Basis in India

- **Tort:** No codified law; based on **common law** and court rulings.
- **Quasi-Contract:** Defined in **Indian Contract Act, 1872**, Sections **68 to 72**.

Section	Provision
Sec 68	Claim for necessities supplied to person incapable of contracting
Sec 69	Reimbursement of money paid by an interested person
Sec 70	Obligation of person enjoying benefit of non-gratuitous act
Sec 71	Responsibility of finder of goods
Sec 72	Recovery of money paid or thing delivered by mistake or under coercion

■ Unit – I: Difference Between Tort and Trust

◆ Introduction

While **tort** and **trust** are both legal concepts, they belong to **entirely different branches of law**.

- **Tort** belongs to the **law of civil wrongs**,
- **Trust** is part of **equity and fiduciary law**, involving management of property for the benefit of another.

Understanding the **distinction** is important for avoiding confusion in liability and responsibility.

◆ What is a Tort?

- A **tort** is a **civil wrong** where a person **breaches a duty imposed by law**, causing **harm or injury** to another.
- The aim is to **compensate** the injured person through **damages**.

🔴 *Example:* A negligently drives into B's parked car. B can sue A for damages in tort.

◆ What is a Trust?

- A **trust** is a **legal arrangement** where a person (**trustee**) holds **property** on behalf of another (**beneficiary**) as per the terms set by the **settlor**.
- It is governed by the **Indian Trusts Act, 1882**.

🔴 *Example:* X transfers property to Y to manage it for the benefit of Z. Here, Y is the **trustee**, and Z is the **beneficiary**.

◆ Key Differences Between Tort and Trust

Basis	Tort	Trust
1. Nature	A civil wrong	A fiduciary relationship involving property
2. Origin of Duty	Duty imposed by law	Duty arises from a trust deed or will
3. Relationship	No relationship needed between parties	Involves relationship of trustee and beneficiary
4. Purpose	To compensate for legal injury or harm	To manage property for benefit of another person
5. Remedy	Unliquidated damages decided by court	Equitable remedies such as injunction, accounting, etc.
6. Legal Area	Part of Law of Torts (Civil Law)	Part of Equity and Trust Law
7. Governing Law (India)	Based on common law & judgments	Governed by Indian Trusts Act, 1882
8. Type of Action	Action is for injury or wrongful act	Action is to enforce duties of trustee or protect trust
9. Example	Negligence, defamation, trespass	Private trust for children's education

◆ Illustration for Better Understanding

✅ Tort Example:

- Mr. A spreads false rumors about Mr. B which harms his reputation.
- Mr. B files a suit for **defamation** under **law of torts**.

✅ Trust Example:

- Mr. X creates a trust and appoints Mr. Y as trustee to hold money for his children.
- If Mr. Y misuses the funds, the beneficiaries can sue him under **trust law**.

■ Unit – I: Difference Between Fault and No-Fault Liability

◆ Introduction

In **tort law**, liability can arise with or without the presence of **fault**.

- **Fault liability** depends on proving **negligence or wrongful intent**.
- **No-fault liability** imposes responsibility **even if no fault is proven**.

These two forms of liability are especially important in cases like **accidents, defective products, and environmental harm**.

◆ What is Fault Liability?

Fault liability arises when the **defendant is at fault**, i.e., they **intentionally or negligently** caused harm. The claimant must **prove wrongdoing or breach of duty**.

🔴 *Example:* A doctor gives wrong medication due to carelessness → patient suffers → doctor is at fault (negligent).

◆ Key Elements:

- Duty of care
- Breach of duty
- Damage caused by the breach
- Proof of fault is necessary

 Case Law: Donoghue v. Stevenson (1932)

- Landmark case establishing negligence.
- Manufacturer owed a duty of care to the consumer.

◆ What is No-Fault Liability?

In **no-fault liability**, the defendant is held liable **even without fault**.
There is **no need to prove negligence or wrongful intent**.

✦ *Example:* An owner of a chemical factory is liable for gas leakage—even if safety measures were in place.

◆ Types of No-Fault Liability:

1. **Strict Liability** (common law)
2. **Absolute Liability** (Indian development)
3. **Statutory No-Fault** (e.g., Motor Vehicles Act)

 Case Law: Rylands v. Fletcher (1868)

- Introduced the concept of **strict liability**: a person keeping dangerous things is liable if they escape and cause damage.

 Case Law: M.C. Mehta v. Union of India (1987)

- **Oleum Gas Leak Case**
- Supreme Court applied **absolute liability** for hazardous industries—**no exceptions** allowed.

◆ Key Differences Between Fault and No-Fault Liability

Basis	Fault Liability	No-Fault Liability
1. Definition	Liability based on negligence or wrongful act	Liability even without fault or negligence
2. Proof Required	Plaintiff must prove fault	Plaintiff need not prove fault
3. Intention	May involve intention or carelessness	Intention is irrelevant
4. Examples	Negligence, trespass, defamation	Strict liability, absolute liability, motor accident
5. Defence Available	Defendant can show he took reasonable care	No defence under absolute liability
6. Applicable Law	Common law and general tort principles	Statutory or judicially created exceptions
7. Purpose	To punish wrongful conduct	To ensure quick and fair compensation
8. Case Law	Donoghue v. Stevenson	Rylands v. Fletcher, M.C. Mehta v. Union of India

◆ Special Example: No-Fault in Motor Vehicle Act (India)

Under **Section 140 of the Motor Vehicles Act, 1988**:

- Compensation for death or permanent disablement due to motor accident is given **without proof of fault**.
- Known as **“no-fault compensation”**.

Unit I: Whether It is "Law of Torts" or "Law of Tort"?

The Debate

There is an **ongoing academic debate** about whether the correct expression is:

- **"Law of Torts"** (plural)
or
- **"Law of Tort"** (singular)

This is not just a grammatical issue—it reflects two **different theories** about the nature of tort law.

1. Winfield's Theory – "Law of Torts"

Winfield's View:

- Tort is a **body of law** that includes **many specific wrongs** (negligence, defamation, nuisance, trespass, etc.).
- If a person suffers legal damage due to another's wrongful act, and the act is not justified by law, it will fall under torts.

✓ Winfield calls it the **“Law of Torts”** because there are **numerous recognized torts**.

Support for this view:

- Includes **both recognized and developing torts**.
- Allows the law to **grow with new wrongs** (e.g., privacy violations, cyber torts).
- Accepted in **India** and many **common law countries**.

✚ *Analogy*: Just as criminal law has many offenses (theft, murder, assault), tort law has many torts.

2. Salmond's Theory – "Law of Tort"

Salmond's View:

- There is **no general principle** of liability in tort law.
- One is liable only if the act falls within a **specific recognized category** of tort (like defamation or trespass).

✓ Salmond calls it the **“Law of Tort”**, emphasizing a **single principle** of civil wrong based on precedent.

Limitation of this view:

- Restricts development of new torts.
- More rigid and less adaptable to modern issues.

Which is More Accepted Today?

- The **modern approach**, followed in **India, UK, and common law countries**, supports **Winfield's view**.
- Hence, the subject is popularly called **"Law of Torts"**.

✚ **Indian Courts**, including the **Supreme Court**, have adopted this broader view to recognize new forms of torts (like environmental torts, custodial deaths, etc.).

Conclusion

Phrase	Supported By	Meaning
Law of Tort	Salmond	Limited to specific wrongs (closed list)
Law of Torts	Winfield (Accepted)	Inclusive of all civil wrongs not justified by law (open list)

✅ The **more accepted and preferred term** is:

✔ Law of Torts

♦ (i) Legal Maxim: Ubi Jus Ibi Remedium

♦ Meaning

"Ubi jus ibi remedium" is a **Latin legal maxim** which means:

"Where there is a right, there is a remedy."

- **Jus** = Legal right
- **Remedium** = Remedy or legal relief

This maxim forms the **foundation of the law of torts** and **civil law** in general.

♦ Explanation

The maxim implies that if a person's **legal right is violated**, the law provides a **remedy** to enforce or protect that right.

Without a remedy, a right would have **no practical value**.

- A **right** becomes meaningful **only when the law enforces it**.
- If courts recognize a **civil wrong**, they must also provide a **legal remedy**, such as **damages, injunction**, or **specific performance**.

📌 **Tort law** exists to provide **remedies for private wrongs**, ensuring that individuals are **compensated** when their **legal rights** are infringed.

♦ Application in Tort Law

- This maxim justifies the very **existence of tort law**.
- Whenever a person's right (to property, safety, reputation, etc.) is violated, the injured party can approach the **court of law** for a **remedy**.

♦ Important Case Laws

📖 1. Ashby v. White (1703)

- Plaintiff was wrongfully denied his right to vote.
- No actual damage was suffered.
- **Held:** Legal right was violated → remedy must be provided.
- **Court awarded damages** despite no actual loss.

✅ *This is the classic case explaining the maxim "ubi jus ibi remedium."*

📖 2. Bhim Singh v. State of J&K (1986)

- An MLA was wrongfully detained by the police and prevented from attending the Assembly session.
- **Held:** Violation of fundamental rights.
- Court granted **monetary compensation** as a constitutional remedy under **Article 32**.

♦ Exceptions to the Maxim

This maxim does **not apply** in all situations. Some **exceptions** include:

Situation	Reason for Exception
Moral or religious wrongs	No legal remedy exists for non-legal issues
Time-barred claims	If the claim is filed after limitation period
Damnum sine injuria	Actual loss without legal injury – no remedy
Political rights without remedies	Some rights may exist without enforceable remedies (e.g., voting irregularities not covered by law)

◆ (ii) Legal Maxim: Injuria Sine Damno

◆ **Meaning:** "Injuria sine damno" is a Latin maxim that means:
"Legal injury without actual damage."

- **Injuria** = Violation of a legal right
- **Sine** = Without
- **Damno** = Actual damage or harm

✓ It means that if a person's **legal right is violated**, they can **sue and claim compensation**, even if **no physical, financial, or actual harm** has occurred.

◆ Explanation

This maxim is **crucial in tort law**. It emphasizes that the **existence of legal injury** is **sufficient** to constitute a tort, and **proof of actual damage is not necessary**.

In tort law:

- If there is a **legal right**, and
- That right is **violated**,
- Then the court will award a **remedy**, even if no **material loss** has occurred.

◆ Example

- If someone is **wrongfully denied entry** into a public office or is **unlawfully detained** for a short time, even if no financial or physical damage is caused, the person can still **claim damages** in tort because a **legal right is violated**.

◆ Landmark Case

Ashby v. White (1703)

Facts:

- Plaintiff was a qualified voter.
- Defendant (a returning officer) wrongfully refused to let him vote.
- Plaintiff suffered **no actual loss**, because the candidate he supported still won.

Held:

- The plaintiff's **legal right to vote** was violated.
- Court awarded **damages**, applying the maxim "**injuria sine damno**".

✓ *This case is the most cited authority for this maxim.*

◆ Indian Case Law

Bhim Singh v. State of J&K (1986)

Facts:

- MLA Bhim Singh was **wrongfully arrested and detained**, preventing him from attending the Assembly session.
- Though he suffered no economic damage, his **constitutional and legal rights** were violated.

Held:

- The Supreme Court awarded **monetary compensation**.
- Applied **injuria sine damno** principle.

◆ Key Points to Remember

- **Focus** is on violation of **legal rights**, not on actual harm.
- **Remedy (damages)** is given even without proof of material loss.
- Helps in **protecting individual rights** and preventing abuse of power.

◆ (iii) Legal Maxim: Damnum Sine Injuria

◆ Meaning

"Damnum sine injuria" is a Latin legal maxim that means:

"Damage without legal injury."

- **Damnum** = Damage or loss
- **Sine** = Without
- **Injuria** = Legal injury

✅ It means that **actual loss or harm, without the violation of a legal right, is not actionable in tort.**

◆ Explanation

This maxim is the **opposite** of *injuria sine damno*.

- A person may suffer **loss or damage**,
- But if **no legal right is violated**,
- Then **no compensation or legal remedy** will be given.

✚ The law does **not protect mere loss** unless it involves a **legal wrong**.

◆ Example

- A opens a shop next to B's shop and due to better pricing, **B loses all customers**.
- Though **B suffers financial loss**, A has **not violated any legal right** of B.

✓ Therefore, B **cannot sue A** in tort → **Damnum sine injuria**.

◆ Landmark Case

Gloucester Grammar School Case (1410)

Facts:

- A schoolmaster opened a new school near an existing one.
- Students left the old school and joined the new one.
- The old schoolmaster suffered **financial loss** and sued.

Held:

- No legal injury was caused by opening a competing school.
- The court held: **"Mere loss without violation of legal right is not actionable."**

✅ This is the **classic case** for the maxim **"damnum sine injuria."**

♦ Indian Case Law

📖 **Mogul Steamship Co. v. McGregor Gow & Co. (1892)**

Facts:

- A group of steamship companies formed an association to attract customers by offering discounts.
- The plaintiff suffered commercial loss.

Held:

- Lawful competition, though it caused **economic loss**, is **not illegal**.
- Court applied **damnum sine injuria** → No remedy.

♦ Key Differences from "Injuria Sine Damno"

Aspect	Injuria Sine Damno	Damnum Sine Injuria
Legal right violated?	✓ Yes	✗ No
Actual damage necessary?	✗ No	✓ Yes
Remedy available?	✓ Yes – Compensation	✗ No – No legal action
Landmark Case	<i>Ashby v. White (1703)</i>	<i>Gloucester Grammar School Case (1410)</i>

♦ (i) General Defence: Volenti Non Fit Injuria

♦ **Meaning:** **"Volenti non fit injuria"** is a Latin legal maxim that means:
"To one who is willing, no harm is done."

✅ If a person **voluntarily consents** to a **risk**, then they **cannot sue** for any injury resulting from it.

♦ Explanation

This defence is based on the principle of **informed consent**.

When someone:

- Has **knowledge of the risk**, and
- **Voluntarily agrees** to it,

Then the **wrongdoer is not liable** for harm caused during that risk.

♦ It is commonly used in **sports injuries**, **dangerous activities**, and **voluntary rescue** situations.

♦ Essential Elements

For this defence to apply, two conditions must be satisfied:

Element	Explanation
1. Free and voluntary consent	Consent must be genuine and not forced or under pressure
2. Knowledge of risk	The person must have full knowledge of the nature and extent of the risk

♦ Example

- A spectator goes to watch a **cricket match** and gets injured by a flying ball.
Since he **consented to the risk** by attending the match, the organizer is **not liable**.

◆ Landmark Case Laws

Hall v. Brooklands Auto Racing Club (1933)

Facts:

- A spectator at a motor race died due to an accident on the track.

Held:

- He had **voluntarily accepted the risk** by attending the event.
- **Defence of volenti non fit injuria applied.**

Padmavati v. Dugganaika (1975) (Indian Case)

Facts:

- Two strangers took a lift in a jeep. Due to a mechanical failure, one of them died.

Held:

- Since they **voluntarily took the lift**, the driver was **not held liable**.
- The defence was successfully applied.

Dann v. Hamilton (1939)

Facts:

- A woman knowingly rode in a car with a drunk driver and got injured.

Held:

- Merely knowing the driver was drunk **does not mean** she **consented to the risk of injury**.
- Defence was **not allowed**.

✓ This case shows that **mere knowledge is not enough**—**clear consent** is required.

◆ Exceptions – When the Defence Does NOT Apply

Exception	Explanation
Rescue Cases	If a person voluntarily risks injury to save another → defence not available
Negligence or wrongdoing beyond scope	If injury occurs due to gross negligence or actions beyond agreed risk
No real choice or unequal power	If consent was not truly voluntary (e.g., employee obeying employer under pressure)

◆ (ii) General Defence: Act of God

◆ Meaning

An **Act of God** refers to a **natural and unforeseen event** that is so extraordinary that **no human foresight or care** could prevent it.

✓ If damage is caused solely due to **natural forces**, and it could **not have been prevented** even with reasonable care, then the **defendant is not liable**.

◆ Definition (Legal)

“An Act of God is an operation of natural forces so unexpected and so severe that no human foresight or skill could reasonably be expected to anticipate it or guard against it.”

— *Blyth v. Birmingham Water Works Co.*

◆ Essential Elements

For the defence of **Act of God** to apply, two key conditions must be met:

Element	Explanation
1. Natural Cause	The event must arise from natural forces (like floods, earthquakes)
2. Unavoidable and Unforeseeable	The event must be unpredictable and cannot be prevented by care

◆ Examples

- An earthquake causes a dam to burst and floods nearby land.
- A tree is struck by lightning and falls on a car.

In such cases, if **all precautions were taken**, the person is **not held liable**.

◆ Landmark Case Laws

Nichols v. Marsland (1876)

Facts:

- The defendant had artificial lakes on his land.
- Due to **extraordinary rainfall**, the lakes overflowed and damaged neighboring property.

Held:

- The flood was due to an **Act of God**—no human could have predicted or prevented it.
- **Defence allowed.**

Ramnath Rai v. Union of India (1970) (Indian Case)

Facts:

- Floodwaters damaged goods during transport.

Held:

- If the flood was **sudden and unforeseeable**, and proper care was taken, the carrier can use **Act of God** as a defence.

◆ Distinction: Act of God vs. Inevitable Accident

Aspect	Act of God	Inevitable Accident
Cause	Due to natural forces	Due to any cause (natural or human)
Foreseeability	Unforeseeable natural events	Could be foreseeable but unpreventable
Examples	Earthquakes, floods, lightning	Brake failure despite maintenance, stray animals

◆ Limitations / When Defence Fails

- If the event was **foreseeable** (e.g., regular monsoon) and no precautions were taken → **defence fails**.
- If there's **human negligence** along with natural causes → **liability arises**.

◆ (iii) General Defence: Inevitable Accident

◆ Meaning

An **inevitable accident** is an accident that could **not have been prevented**, even with the **exercise of reasonable care and caution**.

✓ It is a valid defence in tort law where the defendant proves that:

- The **act was beyond human control**, and
- There was **no negligence** on their part.

◆ Definition

"An accident is said to be inevitable when it is not avoidable by the exercise of ordinary care, caution, and skill."

— *Pollock on Torts*

◆ Essential Elements

For the defence of **inevitable accident** to succeed, the defendant must prove:

Element	Explanation
1. Accident occurred	There was a sudden, unexpected incident
2. No negligence involved	The defendant took all reasonable precautions
3. Accident was unavoidable	Even with care, the incident could not have been prevented

◆ Examples

- A driver suddenly loses control of a car due to a **mechanical failure**, despite regular maintenance.
- A cricket ball accidentally hits a passerby during a **practice match in a closed stadium**.

In such cases, the defendant may **not be held liable**, provided **all precautions were taken**.

◆ Landmark Case Laws

Stanley v. Powell (1891)

Facts:

- During a shooting party, the defendant fired at a bird. The bullet ricocheted off a tree and injured the plaintiff.

Held:

- The incident was **purely accidental** and **not due to negligence**.
- **Defence of inevitable accident was allowed.**

Padmavati v. Dugganaika (1975) (Also cited under Volenti Non Fit Injuria)

Facts:

- A jeep's wheel came off while giving a lift. The jeep overturned, killing one of the passengers.

Held:

- The accident was **sudden** and **unforeseen**.
- It could not have been prevented even with care → **Inevitable accident**.

◆ Distinction: Inevitable Accident vs. Act of God

Aspect	Inevitable Accident	Act of God
Cause	Natural or human causes	Purely natural causes

Aspect	Inevitable Accident	Act of God
Human Role	May involve human activity	No human role; only nature
Examples	Sudden brake failure, accidental injury in sports	Earthquake, lightning, sudden storm
Foreseeability	Could be foreseeable, but still unavoidable	Completely unpredictable and unforeseen

◆ When This Defence Fails

- If there is **even slight negligence**, the defence **cannot be used**.
- If proper precautions were **not taken**, or the accident could have been avoided with reasonable care.

◆ (iv) General Defence: Statutory Authority

◆ Meaning

Statutory Authority means that an act has been **expressly or impliedly authorized by law (a statute)**, and if damage is caused while **lawfully performing that act**, then the person **cannot be held liable** in tort.

✓ It is a **complete defence**, meaning:

- If a person is acting **under legal authority**,
- And causes **damage while performing the authorized duty**,
- Then **no legal action can be taken** against them for tort.

◆ Key Principle

“What is authorized by the law cannot be made unlawful by common law.”

◆ Types of Statutory Authority

Type	Explanation
Express	Authority is clearly mentioned in a statute (written law)
Implied	Authority is not expressly written , but is necessary to perform legal duties

◆ Essential Conditions

For this defence to apply, the defendant must show:

1. The act was done under **a valid legal statute or order**
2. The act was performed **within the legal limits**
3. The **damage was incidental**, not due to **negligence**

◆ Examples

- Building a **railway line** under the authority of a statute—even if it causes **noise or vibration** to nearby homes.
- **Municipal Corporation** digging up roads for sewer maintenance under a **lawful order**.

◆ Landmark Case Laws

Vaughan v. Taff Vale Railway Co. (1860)

Facts:

- Sparks from a train operated under statutory authority **set fire** to the plaintiff’s adjoining property.

Held:

- Since the company was operating under **statutory authority**, and there was **no negligence**,
- The defendant was **not liable**.
 ✓ **Defence of statutory authority allowed.**

Bhogilal v. Municipality of Ahmedabad (1956) (Indian Case)

Facts:

- A municipality dug a trench under legal authority, but **did not place warnings or fences**.
- A person fell in and got injured.

Held:

- While the act was authorized, the **negligence** in execution made them **liable**.
 ✗ **Statutory authority failed due to negligence.**

◆ **Limitations / When This Defence Fails**

- If the damage is caused due to **negligence or carelessness**, the defence **cannot be used**.
- If the authority is **exceeded** or misused, it **loses legal protection**.

◆ **Absolute Defence vs. Conditional Defence**

If act is mandated (must do) Complete defence → No liability

If act is permitted (may do) Defence applies **only if reasonable care is taken**

◆ **(v) General Defence: Act of Necessity**

◆ **Meaning**

“Necessity knows no law.”

This defence means that a person is **not liable for harm** caused while doing an act that was **reasonably necessary to prevent a greater harm**, especially in an **emergency or urgent situation**.

✓ It allows an otherwise unlawful act to be justified if it was done:

- **To prevent greater danger**, and
- **In good faith** and without malice.

◆ **Legal Principle**

If an act is done **to protect life, property, or public safety** from imminent danger, and it is **reasonably necessary**, the defendant **may not be liable**.

This defence is **recognized in tort law, criminal law, and constitutional law**.

◆ **Essential Elements**

Element	Explanation
1. Imminent danger	There must be a clear and urgent threat
2. Good faith and reasonableness	The act must be done honestly and not excessively
3. No alternative	There should be no other way to avoid the harm
4. Act done to prevent greater harm	The purpose must be to save human life or important property

◆ **Examples**

- Breaking into a locked house to **save a child trapped in fire**
- Throwing cargo into the sea to **save a sinking ship**
- Administering emergency medical treatment without consent to **save a patient's life**

♦ Landmark Case Laws

Carter v. Thomas (1986)

Facts:

- A person entered someone's property to extinguish a fire **after firemen had already taken control**.

Held:

- The defendant's act was **not necessary**, as the danger was already handled.
 Defence of necessity **not allowed**.

Cope v. Sharpe (1912)

Facts:

- The defendant entered the plaintiff's land to **prevent the spread of fire** that could have caused major damage.

Held:

- Since the act was done in **good faith to prevent a greater harm**,
 Defence of necessity **was allowed**.

State of Madras v. V.G. Row (1952) (Indian Constitutional Context)

- Even **restrictions on fundamental rights** can be justified under **necessity** in the **interest of public safety and order**.

♦ Difference: Necessity vs. Private Defence

Aspect	Act of Necessity	Private Defence
Purpose	To prevent greater harm (even to others)	To protect oneself or one's property
Aggression	Defensive but not against a wrongful aggressor	Defence against wrongful aggression
Consent	Consent is not always necessary	Not based on consent

♦ Limitations / When the Defence Fails

- If the act was **not reasonable** or **excessive**
- If there was **no imminent danger**
- If done with **bad faith or malice**
- If a **legal alternative** existed

Unit – I: Remoteness of Damage (Also called Remoteness of Consequences)

♦ **What is Remoteness of Damage?**

Remoteness of damage refers to the **legal limitation** on the damages a plaintiff can recover in a tort claim.

It answers the question:

-  "Is the damage suffered by the plaintiff **too remote** from the defendant's wrongful act to hold him liable?"

♦ **Purpose**

To **restrict liability** to only those **consequences** of a wrongful act that are:

- **Foreseeable**, or
- **Directly connected** to the act.

This prevents defendants from being held liable for **every possible consequence**, no matter how unusual or distant.

◆ Two Major Tests (Historical Development)

Test	Explanation
1. Direct Consequences Test	Defendant is liable for all direct consequences , whether foreseeable or not. (Outdated)
2. Reasonable Foreseeability Test	Defendant is liable only for those consequences that a reasonable person could foresee at the time of the wrongful act. (Modern Rule)

◆ Landmark Case Laws

1. *Re Polemis & Furness, Withy & Co. Ltd. (1921)*

Test Applied: *Direct Consequences Test*

Facts:

- A plank was negligently dropped into a ship's hold → caused sparks → led to a fire → ship destroyed.

Held:

- Defendant was **liable** because the fire was a **direct consequence**, even if **not foreseeable**.

✅ Rule: Liability exists for **any direct result** of a negligent act.

2. *The Wagon Mound (No. 1) (1961) – Leading Case*

Test Applied: *Foreseeability Test*

Facts:

- Furnace oil leaked into Sydney Harbour due to the defendant's negligence → later ignited and caused fire damage to nearby ships.

Held:

- Damage by fire was **not foreseeable** from an oil leak → **defendant not liable**.

✅ Established the modern rule:

A person is liable **only for such damages as are reasonably foreseeable**.

◆ Indian Position

Indian courts **follow the Wagon Mound principle** – liability is based on **reasonable foreseeability**, not mere directness.

 **Overseas Tankship (U.K.) Ltd. v. Morts Dock & Engineering Co. Ltd. (Wagon Mound No. 1)** has been cited and followed by Indian courts.

◆ Factors Affecting Foreseeability

Factor	Explanation
Nature of the wrongful act	More dangerous acts have wider foreseeable consequences
Knowledge or skill	Professionals are held to a higher standard of foreseeability
Chain of events	If the chain of causation is broken (<i>novus actus interveniens</i>), liability may end

◆ Thin Skull Rule (Eggshell Skull Rule)

“Take your victim as you find him.”

If the injury is **foreseeable**, the **extent of damage** (even if unusual due to plaintiff’s weakness) does **not matter**.

Smith v. Leech Brain & Co. Ltd. (1962)

Facts:

- Burn caused by negligence led to cancer due to pre-existing condition.

Held:

- Defendant was **fully liable**, because **some injury was foreseeable**.

✓ Once some damage is foreseeable → defendant is liable for **full extent**, even if unusual.

◆ **Summary of Principles**

Test	Applies?	Explanation
Direct Consequences	✗ Outdated	Defendant liable for all direct results, even if not foreseeable
Reasonable Foreseeability	✓ Accepted (Wagon Mound)	Defendant liable only for foreseeable consequences
Thin Skull Rule	✓ Applies	Liable for full extent of damage even if victim is unusually weak

Unit – II: Vicarious Liability – (i) Master and Servant Relationship

◆ **What is Vicarious Liability?**

Vicarious Liability means **one person is held legally responsible for the wrongful act of another**, even though the person **did not commit the act himself**.

✓ It is an **exception** to the general rule that the **wrongdoer is liable for his own acts**.

◆ **Master and Servant Rule**

In this context, a **master (employer)** is **vicariously liable** for the wrongful acts (torts) committed by his **servant (employee)** in the course of employment.

◆ **Legal Principle**

“Qui facit per alium, facit per se”

→ *He who acts through another is deemed to have acted himself.*

✓ This principle forms the **basis** of vicarious liability in a master–servant relationship.

◆ **Essentials of Master-Servant Vicarious Liability**

Essential	Explanation
1. Existence of master-servant relationship	A contract of employment or control must exist
2. Tort committed by servant	A wrongful act (e.g., negligence, defamation) must have occurred
3. Act done during course of employment	The act must be connected with the servant’s duties

◆ **"Course of Employment" – Explained**

An act is said to be within the **course of employment** if:

- ✓ It is authorized by the master,
- ✓ It is a wrongful way of doing authorized work, or
- ✓ It is done during work hours, using the employer’s resources.

◆ When Master is Not Liable

✗ If the servant acts:

- Outside the scope of employment
- For personal motives ("on a frolic of his own")
- In violation of express instructions (in some cases)

◆ Landmark Case Laws

1. State of Rajasthan v. Vidyawati (AIR 1962 SC 933)

Facts:

- A government driver caused an accident while driving a jeep negligently.

Held:

- State was held **vicariously liable**, as the driver was **on duty**.

✓ India recognizes **vicarious liability of the State** in tort.

2. Limpus v. London General Omnibus Co. (1862)

Facts:

- A bus driver, against instructions, raced another bus to pick up passengers and caused injury.

Held:

- Act was unauthorized **but done in the course of duty** → employer was **liable**.

3. Beard v. London Omnibus Co. (1900)

Facts:

- A conductor drove the bus himself (unauthorized) and injured someone.

Held:

- Employer **not liable**, as the act was **outside the servant's duty**.

◆ Indian Position

Indian courts have accepted and applied the principle of vicarious liability, including:

- **Government employees** (State liability)
- **Drivers, hospital staff, company workers**, etc.

Unit – II: Vicarious Liability – (ii) State Liability

◆ What is State Liability?

State Liability refers to the **legal responsibility of the government** (Union or State) for the **wrongful acts of its employees**, committed in the **course of their official duties**.

✓ It is a form of **vicarious liability** under which the State, like a private employer, can be held liable for **torts committed by its servants**.

◆ Historical Background: East India Company & Crown Immunity

- Under English Law, the **Crown could not be sued** without its consent (doctrine of **sovereign immunity**).

- In India, this doctrine evolved through **case law and constitutional interpretation**, especially **Article 300 of the Indian Constitution**.

♦ Constitutional Provision: Article 300

Under **Article 300 of the Constitution of India**, the Government of India and the State Governments can be **sued** in the same manner as the **Dominion of India or Provinces** could be sued before the Constitution came into force.

✅ Thus, the State **can be held liable in tort**, but **with certain exceptions**.

♦ Two Types of State Functions

Type of Function	Explanation
✅ Non-Sovereign Functions	Commercial, welfare, or administrative activities (e.g., running transport, hospitals) → State is liable
❌ Sovereign Functions	Activities like defense, policing, judiciary, tax collection → State is not liable

🔴 Courts often use this **sovereign vs. non-sovereign test** to determine liability.

♦ Landmark Case Laws

📖 1. P & O Steam Navigation Co. v. Secretary of State (1861)

Facts:

- Government servants negligently injured a person while doing port-related work.

Held:

- The act was **non-sovereign**, as port management is a commercial function → **State liable**.

✅ This is the **first Indian case** recognizing **State's tortious liability**.

📖 2. State of Rajasthan v. Vidyawati (AIR 1962 SC 933)

Facts:

- Government jeep driver caused a fatal accident while on duty.

Held:

- Driving a government vehicle for administrative work is a **non-sovereign function** → **State liable**.

✅ Marked a shift toward **liberal interpretation** of State liability.

📖 3. Kasturi Lal v. State of U.P. (AIR 1965 SC 1039)

Facts:

- Police seized gold from plaintiff but failed to return it due to misconduct.

Held:

- The act (policing) was a **sovereign function** → **State not liable**.

❌ This case **revived sovereign immunity** and is still controversial.

♦ Evolution in Modern India

Recent judicial trends show a **move toward greater accountability** of the State:

- In **constitutional torts** (violation of fundamental rights), **sovereign immunity is not allowed**.
- Courts have granted **compensation under Articles 21 and 32** of the Constitution.

📖 Nilabati Behera v. State of Orissa (1993)

- Supreme Court held that **State is liable** for **custodial death**.
- Applied **constitutional remedy**, even when sovereign immunity existed in tort.

■ Unit – II: Strict Liability & Absolute Liability

◆ A. Strict Liability

◆ **Definition: Strict Liability** is a legal principle under which a person is held liable for the damage caused by **hazardous things kept on their land, even if they were not negligent**.

✓ Originates from **English law**, specifically the **rule in *Rylands v. Fletcher (1868)***.

📖 Leading Case: *Rylands v. Fletcher (1868)*

Facts:

- The defendant built a reservoir on his land.
- Water escaped through an abandoned mine shaft and flooded the plaintiff's coal mine.
- There was **no negligence**.

Held:

- The defendant was **strictly liable**, even without fault.
- Established the **rule of strict liability**.

◆ Rule Laid Down

"A person who brings and keeps on his land anything likely to do harm if it escapes, must keep it at his own risk. If it escapes and causes damage, he is strictly liable."

◆ Essentials of Strict Liability

Essential	Explanation
1. Dangerous thing brought on land	Must be non-natural and capable of causing harm
2. Escape of the thing	It must escape from the defendant's land to another's
3. Non-natural use of land	Use of land must be unusual (e.g., storing chemicals, explosives, water tanks)
4. Foreseeable damage	Damage must be reasonably foreseeable

◆ Exceptions to Strict Liability

Exception	Explanation
Plaintiff's fault	No liability if damage caused by plaintiff's own negligence
Act of God	Natural and unforeseeable events (like earthquakes)
Act of third party	If the damage is caused solely by a third party over whom the defendant has no control
Consent of plaintiff	<i>Volenti non fit injuria</i> – consented to the risk
Statutory authority	If the activity was permitted by law

◆ B. Absolute Liability (Indian Law)

◆ Origin: Indian Expansion of Strict Liability

Absolute Liability is an Indian legal doctrine evolved by the **Supreme Court in *M.C. Mehta v. Union of India (1987)***. It imposes **liability without any exception**, for harm caused by **hazardous or inherently dangerous industries**.

M.C. Mehta v. Union of India (Oleum Gas Leak Case, 1987)

Facts:

- Oleum gas leaked from Shriram Food and Fertilizers Ltd. in Delhi, affecting many people.
- Company argued **strict liability** and exceptions.

Held:

- The **doctrine of strict liability is inadequate** for modern industrial hazards.
- Court laid down the principle of **absolute liability**:

“Where an enterprise is engaged in hazardous or inherently dangerous activity and harm results, it is absolutely liable to compensate – **no exceptions apply.**”

✅ It is a **stricter version** of strict liability, specially crafted for Indian industrial context.

◆ Key Features of Absolute Liability

Feature	Explanation
No exceptions	Unlike strict liability, no defences like Act of God or third-party acts
Hazardous industries targeted	Applied to factories handling toxic substances
Welfare-oriented	Protects citizens; part of Article 21 (Right to Life) jurisprudence
Extended damages	Damages must be compensatory and deterrent

◆ Comparative Table

Aspect	Strict Liability	Absolute Liability
Origin	<i>Rylands v. Fletcher</i> (UK)	<i>M.C. Mehta v. Union of India</i> (India)
Escape required	✓ Yes	✗ Not necessary
Exceptions allowed	✓ Yes (Act of God, third party, etc.)	✗ No exceptions allowed
Application	Dangerous things stored	Hazardous industries, modern pollution cases
Liability nature	Based on strict rule with some defences	Complete liability regardless of fault or defences

◆ Who are Joint Tortfeasors?

Joint Tortfeasors are **two or more persons** who **act together** or through a **common design or action**, and their act results in a **single tort or harm** to the plaintiff.

✅ In such cases, **all of them are jointly and severally liable** — meaning the injured party can sue **any one, some, or all** of them for **full compensation**.

◆ Legal Definition

“When two or more persons **by common action or concerted design**, cause a single wrongful act, they are called **Joint Tortfeasors.**”

This includes:

- Persons acting **in concert** (e.g., group assault),
- Persons **independently** causing the **same damage**,

- Persons whose **negligence combines** to cause injury.

◆ Essentials of Joint Tortfeasance

Essential Element	Explanation
1. Two or more wrongdoers	There must be more than one person committing the tort
2. Single harm or injury	The tortious acts must result in a common injury to the plaintiff
3. Common intention or result	The defendants must act together or cause the same harm

◆ Types of Joint Tortfeasors

1. **By Common Design**
 - All tortfeasors **actively participated** in the wrongful act
 - E.g., Group planning and executing an assault
2. **By Concurrent Negligence**
 - Multiple persons act **independently**, but their combined negligence causes one harm
 - E.g., Two drivers simultaneously hit a pedestrian
3. **Vicarious Liability**
 - A person is made liable for another's wrongful act (e.g., employer and employee)

◆ Legal Consequences

✓ Joint and Several Liability

The plaintiff can **recover full damages** from **any one** of the tortfeasors.
That tortfeasor can then recover **contribution** from the others.

✓ Right of Contribution

A tortfeasor who pays full compensation can **sue the other tortfeasors** to recover their share.

◆ Important Case Laws

1. Merryweather v. Nixan (1799)

Old Rule:

- No contribution was allowed among joint tortfeasors.
- ✗ Overruled by later developments.

2. The Koursk (1924)

Held:

- If two ships independently collided and caused harm, their owners are **jointly liable**.
- Even if their acts were not jointly planned, they caused a **single harm**.

3. Brook v. Bool (1928)

Facts:

- Two people, acting in good faith, tried to extinguish a fire but **negligently caused injury**.

Held:

- They were **jointly liable** because their **combined act** led to injury.

*4. Khushro S. Gandhi v. N.A. Guzdar (1969 Bombay HC)

Indian Case

Held:

- A person **publishing defamatory content** along with others can be held as **joint tortfeasor**.

◆ Defences Not Available

- A joint tortfeasor **cannot escape liability** by saying someone else also caused the harm.
- Plaintiff is **not bound** to sue all tortfeasors; suing **any one** is sufficient.

◆ Example Situations

Scenario	Are They Joint Tortfeasors?
Two persons plan and commit trespass together	✓ Yes
Multiple doctors negligently operate together	✓ Yes
Two drivers crash into the same person	✓ Yes (concurrent tortfeasors)
A and B independently defame C at different times	✗ No (not joint, different torts)

■ Unit – II: Torts Against the Person

◆ Introduction

Torts against the person refer to wrongful acts that cause **direct harm to a person's body, liberty, or personal security**.

Three important personal torts are:

✓ (a) Assault, ✓ (b) Battery, and ✓ (c) False Imprisonment.

◆ (a) Assault

◆ Definition

An **assault** is an act which **creates in the mind of the plaintiff a reasonable apprehension** of an **immediate threat** of physical harm.

✓ There is **no physical contact**, but there is a **threat of force**.

◆ Essentials of Assault

Essential	Explanation
1. Intentional act	Done with the purpose of causing fear
2. Apprehension of harm	Plaintiff must feel that force may be used
3. Immediate threat	Threat must be imminent , not a future one
4. No actual contact	Mere threatening gesture is enough

📖 Case: Stephens v. Myers (1830)

Facts:

- Defendant advanced toward the plaintiff in a threatening manner with a clenched fist but was stopped.

Held:

- This was an **assault**, as the **plaintiff reasonably apprehended harm**, even though there was no contact.

✓ Examples of Assault:

- Raising a fist to punch someone
- Pointing a loaded gun at someone

- Swinging a stick in a threatening manner

♦ (b) Battery

♦ Definition

Battery is the **intentional and direct physical contact** with another person **without lawful justification or consent**.

✅ **Physical contact is essential** in battery.

Even if no harm is caused, the **unauthorized touch** is a tort.

♦ Essentials of Battery

Essential	Explanation
1. Intentional act	Touch must be voluntary and deliberate
2. Physical contact	Any unwanted contact (however slight)
3. Without consent	If consent is present, no battery
4. Without lawful justification	Cannot be justified in law (e.g., in medical emergencies)

📖 Case: Cole v. Turner (1704)

Held:

- “The least touching of another in anger is battery.”
- ✅ Even **minor contact**, if done angrily or without consent, can be battery.

✔ Examples of Battery:

- Slapping or punching someone
- Spitting on someone
- Unwanted medical treatment (without consent)

♦ Difference between Assault and Battery

Point	Assault	Battery
Nature	Threat or attempt	Actual physical contact
Physical Contact	❌ Not required	✔ Required
Harm	Mental apprehension	Physical touch, even without injury
Example	Raising a hand to slap	Actually slapping

♦ (c) False Imprisonment

♦ **Definition:** **False Imprisonment** is the **unlawful restraint of a person’s freedom of movement**, without legal justification or consent.

✅ Even **short detention**, in a room or area, may amount to false imprisonment.

♦ Essentials of False Imprisonment

Essential	Explanation
1. Complete restraint	The person must be totally confined
2. Without legal justification	Detention must be unauthorized

Essential	Explanation
3. Intention	Defendant must intend the confinement
4. Knowledge not necessary	The person need not know at the time that they are confined

Case: Bird v. Jones (1845)

Facts:

- Plaintiff was prevented from using part of a public road but could move elsewhere.

Held:

- No **false imprisonment**, as **freedom was not totally restricted**.

Case: Herring v. Boyle (1834)

Held:

- If the plaintiff is **not aware of being confined**, it can still amount to **false imprisonment**.

✓ Examples:

- Locking someone in a room
- Wrongful police arrest without warrant
- Blocking someone's exit in all directions

◆ Defences Available

Tort	Possible Defence
Assault	Self-defence, consent, lawful authority
Battery	Consent (e.g., sports), self-defence, necessity
False Imprisonment	Lawful arrest, statutory authority, consent

◆ What is Malicious Prosecution?

Malicious Prosecution is a **tort** that occurs when a person is **wrongfully subjected to criminal proceedings** initiated **maliciously and without reasonable cause**, which end in their **favour**.

- ✓ It aims to protect individuals from **unjustified and baseless legal actions** brought with **malice**.

◆ Legal Definition

"Malicious prosecution is the institution of **criminal proceedings** by one person against another, **without reasonable and probable cause**, with **malice**, and such proceedings **end in the plaintiff's favour**."

◆ Essentials of Malicious Prosecution

To succeed in a claim, the **plaintiff must prove all** of the following:

Element	Explanation
1. Prosecution by the defendant	Legal/criminal proceedings must have been initiated by the defendant
2. Termination in plaintiff's favour	The case must end in acquittal, discharge, or dropping of charges
3. Absence of reasonable and probable cause	Defendant must not have had genuine grounds for prosecution

Element	Explanation
4. Malice	The defendant must have acted with wrongful motive, not just to seek justice
5. Damage suffered by the plaintiff	Plaintiff must show harm to reputation, liberty, or mental peace

▲ **All elements must be present** – if even one is missing, the action fails.

◆ Who Can Be Sued?

- The person who **actively instigated, filed, or pursued** the false case.
- Police officers, complainants, or others who **misused the legal system**.

◆ What is "Prosecution"?

- It refers to **criminal proceedings**, not civil suits.
- Begins with a complaint to the police or magistrate, and involves formal investigation or charge.

◆ What is "Malice"?

Malice does not mean personal hatred; it means acting with **an improper motive**, like harassment or revenge, rather than securing justice.

◆ What is "Reasonable and Probable Cause"?

It means the **honest belief** based on **reasonable grounds** that the accused was guilty.

◆ Damages Recoverable

Type of Damage	Explanation
✓ Damage to reputation	Arrest, trial, or public exposure harms social image
✓ Loss of liberty	Detention, imprisonment, or police custody
✓ Mental suffering	Anxiety, trauma, and distress
✓ Financial loss	Cost of defending against false prosecution

◆ Landmark Case Laws

West Bengal State Electricity Board v. Dilip Kumar Ray (2007)

Held:

- **False FIRs** without proper inquiry and arrest **amounted to malicious prosecution**.
- State board was held **liable**.

Radhakant v. State of U.P. (1979)

Facts:

- Plaintiff was falsely prosecuted for theft and later acquitted.

Held:

- Since prosecution was **without probable cause** and with **malice**, the **tort was established**.

Gaya Prasad v. Bhagat Singh (1908)

Held:

- Merely filing a report is **not enough**; active **malicious intent** and **lack of reasonable cause** must be proved.

◆ Defences Available to Defendant

Defence	Explanation
✓ Reasonable and probable cause	Genuine suspicion or evidence existed
✓ Absence of malice	No improper motive behind the prosecution
✗ Favourable termination missing	If case did not end in plaintiff's favour , tort fails

■ Unit – III: Negligence – Definition & Essential Elements

◆ What is Negligence?

Negligence is a **tort** that arises when a person **fails to take reasonable care**, resulting in **damage or injury** to another.

✓ It is both a **civil wrong** (tort) and may also be relevant in **criminal law**, **contracts**, and **consumer law**.

◆ Legal Definition

“Negligence is the **breach of a duty of care** which results in **damage** to another person.”

→ This means **failure to act as a reasonable person would**, under similar circumstances.

◆ Examples of Negligence:

- A doctor leaving surgical instruments inside a patient
- A driver overspeeding and causing an accident
- A shopkeeper not cleaning a wet floor, leading to a customer's fall

◆ Essentials of Negligence (Tort Law)

To prove negligence, **three main elements** must be satisfied:

Essential Element	Explanation
1. Duty of Care	The defendant must owe a legal duty to the plaintiff
2. Breach of Duty	The defendant must have failed to meet that duty (acted carelessly)
3. Resulting Damage	The breach must have caused injury or loss to the plaintiff

Let's explain each element:

◆ 1. Duty of Care

The defendant must owe a **legal obligation** to take care in their conduct towards the plaintiff.

This was first established in:

📖 **Donoghue v. Stevenson (1932)**

Facts:

- A woman drank ginger beer containing a decomposed snail and fell ill.

Held:

- Manufacturer owed a **duty of care** to the consumer.
- Introduced the “**neighbour principle**” — one must take reasonable care to avoid acts that can harm one's "neighbour" (any person closely affected by the act).

✓ **Key Concept:** Foreseeability of harm = Duty of care.

♦ 2. Breach of Duty

The defendant must have **failed** to take the care expected of a **reasonable person** in similar circumstances.

It is measured **objectively**: What would a reasonable person have done?

Blyth v. Birmingham Waterworks Co. (1856)

Held:

- “Negligence is the omission to do something which a reasonable man would do.”

♦ 3. Damage (Causation)

The plaintiff must prove **actual loss or injury** was caused by the defendant's breach.

It involves two steps:

- **Causation in fact** → "But for" the defendant's act, the damage would not have occurred.
- **Remoteness** → The damage must not be too far-fetched or indirect.

Barnett v. Chelsea Hospital (1969)

Held:

- Even if duty was breached, **no causation** was found (patient would have died anyway).

♦ Types of Negligence

Type	Explanation
Contributory Negligence	Plaintiff also contributed to their injury → may reduce damages
Composite Negligence	Multiple parties' negligence causes a single injury to the plaintiff
Gross Negligence	Extreme carelessness or reckless disregard
Professional Negligence	By professionals like doctors, lawyers, engineers, etc. (also called <i>malpractice</i>)

♦ Indian Position

Indian courts follow the principles laid down in English cases, especially **Donoghue v. Stevenson**.

Municipal Corporation of Delhi v. Subhagwanti (1966)

Facts:

- Clock tower collapsed, killing people.

Held:

- Corporation was **negligent** in not maintaining the tower properly → **liable**.

Unit – III: Negligence – *Res Ipsa Loquitur*

♦ What is *Res Ipsa Loquitur*?

“*Res Ipsa Loquitur*” is a Latin phrase that means “**The thing speaks for itself.**”

✅ In the **law of negligence**, this doctrine allows the **presumption of negligence** without direct proof when the **accident itself implies negligence**.

♦ Legal Meaning

When an accident occurs in such a manner that **would not have occurred without negligence**, the **burden of proof shifts to the defendant** to prove they were not negligent.

♦ Essentials of *Res Ipsa Loquitur*

To apply this doctrine, the following conditions must be satisfied:

Essential	Explanation
1. Exclusive control	The instrument or situation causing injury must be under defendant's control
2. No voluntary action by plaintiff	The plaintiff should not have contributed to the injury
3. Accident of such a nature	The accident must be of a type that doesn't usually happen without negligence

Example:

- A **brick** falls from a building under construction and injures a passerby → **Res Ipsa Loquitur** applies.
- The **falling brick itself proves negligence** — such things don't fall unless someone is careless.

◆ Legal Effect

- Normally, in negligence cases, the **plaintiff has to prove** that the defendant was negligent.
- But under *Res Ipsa Loquitur*, **this burden shifts to the defendant** to disprove negligence.

◆ Important Case Laws

1. **Byrne v. Boadle (1863)**

Facts:

- A barrel of flour fell from a warehouse and injured a pedestrian.

Held:

- The barrel wouldn't have fallen without negligence.
✓ First case where *Res Ipsa Loquitur* was applied.

2. **Gee v. Metropolitan Railway Co. (1873)**

Facts:

- A passenger fell from a moving train due to a door opening suddenly.

Held:

- Train doors are controlled by railway employees.
✓ Doctrine applied – accident implied **negligence by the railway company**.

3. **Municipal Corporation of Delhi v. Subhagwanti (1966) – IN Indian Case**

Facts:

- Clock tower collapsed in Delhi and killed people.

Held:

- Clock tower was under the **exclusive control** of the municipal authority.
✓ Applied *Res Ipsa Loquitur* → **Negligence presumed**.

◆ When Res Ipsa Loquitur Does Not Apply

Situation	Why Not Applicable?
Plaintiff contributed to the accident	No longer only the defendant's responsibility
Accident was unavoidable	No negligence – an act of God or inevitable accident

Situation

Why Not Applicable?

Defendant had **no control**

Example: someone else's negligence caused the situation

◆ Res Ipsa vs. Regular Negligence

Aspect	Res Ipsa Loquitur	Ordinary Negligence
Proof required	No direct proof – accident implies negligence	Plaintiff must prove duty, breach, damage
Burden of proof	Shifts to defendant	Stays with plaintiff
Based on	Circumstantial evidence	Direct evidence
Example	Falling brick, surgical tool left inside body	Careless driving with evidence

■ Unit – III: Negligence – The Last Opportunity Rule

◆ What is the Last Opportunity Rule?

The **Last Opportunity Rule** (also called the **Last Clear Chance Doctrine**) is a **judicial principle** in negligence cases where **both the plaintiff and defendant were negligent**.

✅ It states that **the party who had the final chance to avoid the accident** — but failed to do so — is held **fully liable**, even if the other party was also negligent earlier.

◆ Purpose of the Rule

- To **mitigate the harshness** of the doctrine of **contributory negligence** (where the plaintiff's negligence could completely bar recovery).
- Gives **damages to the plaintiff** if the defendant had the **last clear opportunity** to prevent the harm.

◆ Essentials of the Rule

To apply the **Last Opportunity Rule**, the following conditions must be met:

Essential	Explanation
1. Plaintiff was negligent	Plaintiff must have contributed to the dangerous situation
2. Defendant had last opportunity	Defendant had the final, real chance to avoid the accident
3. Defendant failed to act	Despite having the opportunity, the defendant failed to prevent the harm
4. Damage resulted	The plaintiff suffered injury as a result of the failure to act

◆ Landmark Case Laws

📖 **Davies v. Mann (1842)** – 🏛️ **Leading Case**

Facts:

- The plaintiff left his donkey **tied on the roadside** (negligent act).
- The defendant, driving a cart at high speed, **ran over and killed** the donkey.

Held:

- Although the plaintiff was negligent, the defendant had the **last opportunity** to avoid the accident.
✅ Defendant **fully liable** under the **Last Opportunity Rule**.

📖 **Radley v. London and North Western Railway Co. (1876)**

Facts:

- A wagon was left on a railway line without notice.
- Train came and collided.

Held:

- Railway company had the last chance to stop the train.
- ✓ Company liable under the doctrine.

♦ Indian Law Position

Indian courts **recognize this rule**, especially in motor accident cases and civil negligence.

Rural Transport Service v. Bezlum Bibi (1980 SC)

- Supreme Court applied **Last Opportunity Rule** to **mitigate contributory negligence**, holding that if the driver had a chance to avoid the accident, he is liable.

♦ Example for Easy Understanding

A pedestrian crosses the road carelessly (his negligence). A car driver sees him but does not slow down and hits him.

- ✓ The driver had the **last clear chance** to avoid the accident → he is **liable**, not the pedestrian.

♦ Last Opportunity Rule vs Contributory Negligence

Aspect	Contributory Negligence	Last Opportunity Rule
Effect on plaintiff	May bar or reduce recovery	May still allow full recovery
Focus	Both parties' negligence considered together	Focuses on who had final chance to avoid harm
Who is liable?	Sometimes shared or reduced liability	The one with last opportunity is fully liable

Unit – III: Product Liability Due to Negligence of Manufacturer

♦ What is Product Liability?

Product Liability is the **legal responsibility of manufacturers or sellers** to compensate consumers for **harm caused by defective products**.

- ✓ Under the **law of torts**, when a **manufacturer is negligent** in making or inspecting a product, and it causes **harm**, the manufacturer is **liable**.

♦ Definition

"A manufacturer is liable in negligence if he fails to exercise **reasonable care** in the **manufacture, inspection, or warning** of potential dangers of a product, and this failure causes **harm to the consumer**."

♦ Scope of Manufacturer's Duty

A manufacturer owes a **duty of care** to:

- The **immediate buyer**
- Any **end-user or consumer**, even without a contract
- **Ultimate consumer** in the supply chain

- ✓ This is based on the **principle of foreseeability** — the manufacturer can reasonably foresee that **negligence may cause harm**.

♦ Grounds for Liability in Negligence

Ground of Negligence	Explanation
1. Manufacturing Defect	Product was improperly assembled or constructed
2. Design Defect	Product was inherently dangerous due to its design
3. Failure to Warn	Manufacturer did not provide necessary warnings or instructions
4. Improper Testing or Inspection	Manufacturer failed to adequately test the product before release

◆ Essentials of Product Liability Due to Negligence

Essential Element	Explanation
1. Duty of Care	Manufacturer must take care toward foreseeable consumers
2. Breach of Duty	Failed to act reasonably during manufacturing, testing, or labeling
3. Causation	Breach of duty must directly cause the injury
4. Damage	Consumer must suffer physical harm, property loss, or economic loss

Leading Case: Donoghue v. Stevenson (1932) – **Landmark in Product Liability**

Facts:

- A woman consumed ginger beer bought by a friend. The bottle had a **decomposed snail**, which made her sick.
- She sued the manufacturer, **though there was no contract** between them.

Held (by Lord Atkin):

- Manufacturer owed a **duty of care to the ultimate consumer**.
- Even without a contract, if harm is **reasonably foreseeable**, **duty of care arises**.

✅ **Established the “Neighbour Principle”** — one must take care to avoid acts that can harm foreseeable users.

Other Case Laws

Grant v. Australian Knitting Mills (1936)

Facts:

- Plaintiff bought woollen underwear that caused skin disease due to **excess sulphite**.

Held:

- Manufacturer was negligent for **not removing chemicals properly** → **liable**.

Indian Case: Abbay Thomas v. Cochin Refineries Ltd. (1979 Kerala HC)

Facts:

- Petrol tanker exploded due to **manufacturing defect**, causing deaths.

Held:

- Manufacturer was **liable for negligence**, even if **intermediary handled the product**.

◆ **Liability Without Privity of Contract**

Even if the consumer **did not purchase the product directly**, the **manufacturer is liable** if:

- Injury was **foreseeable**, and
- Product was used **as intended**

▲ This is an **exception to the doctrine of privity of contract**.

◆ Defences Available to Manufacturer

Defence	Explanation
✗ No Duty Owed	Consumer was unforeseeable
✗ No Breach of Duty	Manufacturer followed all reasonable safety measures
✓ Consumer Misuse	If injury occurred due to improper use by consumer
✓ Warning Given	Adequate risk warnings were provided
✓ Act of Intermediary	Damage caused by retailer's mishandling

◆ Remedies Available to Consumer

- **Compensatory Damages** – For medical costs, property loss, suffering
- **Punitive Damages** – In extreme negligence cases (e.g., life-threatening products)
- **Injunctions** – To stop further sale/distribution
- **Consumer Protection Act, 2019 (India)** – Also provides remedy beyond tort law

■ Unit – III: Contributory Negligence

◆ What is Contributory Negligence?

Contributory Negligence refers to a **situation where the plaintiff (injured party) is also partly negligent** and contributes to the occurrence of the harm.

✓ It acts as a **partial or complete defence** to a negligence claim.

◆ Legal Definition

“When the plaintiff himself fails to take reasonable care for his own safety, and his negligence contributes to the harm suffered, he is said to be **guilty of contributory negligence**.”

⚖️ This doctrine **reduces or defeats** the plaintiff's claim for damages.

◆ Essentials of Contributory Negligence

Essential Element	Explanation
1. Negligence by plaintiff	The plaintiff did not act as a reasonable person would
2. Contribution to harm	Plaintiff's negligence contributed to the injury or loss
3. Connection with defendant's act	The injury must be a result of both parties' combined negligence

◆ Important Case Laws

📖 **Butterfield v. Forrester (1809)** – 📌 *First case on contributory negligence*

Facts:

- Defendant obstructed the road.
- Plaintiff rode too fast and hit the obstruction.

Held:

- Though the defendant was negligent, the plaintiff **could have avoided the accident**.
✓ **No compensation** due to **contributory negligence**.

Davies v. Mann (1842) – Introduced Last Opportunity Rule

Facts:

- Plaintiff's donkey was tied on road (negligence).
- Defendant, driving fast, ran over it.

Held:

- Defendant had the **last opportunity** to avoid the accident.
 So, contributory negligence **did not bar recovery**.

Indian Case: Rural Transport Service v. Bezlum Bibi (1980 SC)

Facts:

- Passenger travelling on bus roof died in accident.

Held:

- **Passenger was negligent**, but the **driver also negligent** in allowing it.
 **Liability apportioned** – Contributory negligence applied.

◆ Legal Effect

Earlier Rule (Old Common Law) Plaintiff's contributory negligence barred the entire claim.

Modern Law (Apportionment) Courts now **apportion blame and reduce damages** based on percentage of fault.

◆ Apportionment of Liability (Modern View)

Courts divide liability based on the **degree of negligence** from both parties.

Example:

- Plaintiff is 30% at fault → Defendant pays only **70%** of the damages.

This principle is also part of:

- **Law Reform (Contributory Negligence) Act, 1945 (UK)**
- **Motor Vehicles Act, 1988 (India)** – especially in accident compensation cases.

◆ Examples of Contributory Negligence

Situation	Contributory Negligence?
Not wearing a seatbelt in a car accident	 Yes
Walking on railway tracks despite warning signs	 Yes
Patient not following doctor's advice	 Yes
A minor child runs into road without looking	 May apply with reduced liability

◆ Exceptions to the Rule

Doctrine	Explanation
Last Opportunity Rule	If defendant had last clear chance to avoid injury → full liability
Rescue Situations	A rescuer's negligence may be excused if acting in emergency
Children or mentally ill	Courts may be lenient if plaintiff cannot be expected to act reasonably

Unit – III: Nuisance

◆ What is Nuisance?

Nuisance is an unlawful **interference with a person's use or enjoyment of land** or **some right associated with it**, such as light, air, or way.

✓ It includes both **physical discomfort** (like smoke, smell, noise) and **interference with property rights**.

◆ Legal Definition

“Nuisance is any act or omission which causes **unlawful interference** with a person’s enjoyment of land or property.”

 *Winfield:*

“Nuisance is that activity or state of affairs that causes harm or annoyance to a person’s property or comfort.”

◆ Essential Elements of Nuisance

To constitute nuisance, the following elements must be present:

Element	Explanation
1. Unlawful Act	The act must be unauthorized by law
2. Interference	There must be interference with the use or enjoyment of land
3. Actual Damage/Annoyance	There must be substantial or unreasonable inconvenience
4. Continuity (for private)	Usually, there must be a continuous or recurring act

◆ Kinds of Nuisance

1 Public Nuisance

Affects the **community or public at large** rather than an individual.

✓ It is a **criminal offence** under **Section 268, IPC**.

 **Example:**

- Obstructing a public road
- Polluting a river
- Loudspeakers disturbing a locality

 **Case: A.G. v. P.Y.A. Quarries Ltd. (1957)**

Held:

- Acts that affect a **section of the public** and interfere with public convenience = **public nuisance**.

2 Private Nuisance

Affects the **use or enjoyment of land by an individual** or a limited number of persons.

✓ It is a **civil wrong** (tort), not a criminal offence.

 **Example:**

- Smoke entering neighbor’s house
- Loud machinery causing vibration to adjoining buildings

 **Case: St. Helen’s Smelting Co. v. Tipping (1865)**

Held:

- If **physical damage** to property occurs (e.g., trees damaged by fumes), the **plaintiff can sue**, even in industrial areas.

◆ Difference Between Public and Private Nuisance

Aspect	Public Nuisance	Private Nuisance
Scope	Affects public or large group	Affects an individual or limited people
Nature	Criminal offence	Civil wrong (tort)
Remedy	Action by State (unless special damage)	Civil suit by affected person
Law	Section 268, IPC	Tort law

◆ Defences in Nuisance

Defence	Explanation
✅ Statutory Authority	If the act is authorized by statute , it is not nuisance
✅ Prescriptive Right	If the nuisance has continued uninterrupted for 20 years , it becomes legal
❌ Public Good	Not a valid defence – harming one for benefit of many is not excused
❌ Plaintiff came to nuisance	Not a valid defence (if someone moves into an already noisy area, they can still sue)

Case: Miller v. Jackson (1977)

Facts:

- Cricket balls kept entering plaintiff's garden from a nearby ground.

Held:

- Though the game was in public interest, it was still nuisance.
 - ✅ Public good is **not a valid defence**.

◆ Remedies for Nuisance

Remedy	Description
✅ Injunction	Court order to stop the nuisance
✅ Damages	Monetary compensation for harm or discomfort
✅ Abatement	Self-help remedy – plaintiff removes the nuisance (lawfully)

Unit – III: Defamation – Meaning, Essentials, Kinds, and Defences

◆ What is Defamation?

Defamation is a **false and harmful statement** made about a person, which **injures their reputation** in the eyes of others.

✅ It is a **civil wrong (tort)** and also recognized as a **criminal offence** under **Section 499 of the Indian Penal Code (IPC)**.

◆ Legal Definition (Under Tort Law)

Defamation is the **publication of a false statement** about a person that **lowers their reputation** or **exposes them to hatred, ridicule, or contempt** in the eyes of society.

◆ Essential Elements of Defamation

To constitute defamation, the following conditions must be satisfied:

Element	Explanation
1. Defamatory Statement	The statement must harm the reputation of the person
2. Reference to the Plaintiff	It must clearly be about the person who is suing
3. Publication	The statement must be communicated to a third person
4. Falsity of Statement	The statement must be false (truth is a valid defence)
5. Intention or Negligence	It must be intentionally or negligently made

◆ Kinds/Types of Defamation

There are **two main kinds** of defamation:

1 Libel

Written, printed, or published defamation

(e.g., newspaper articles, social media posts, cartoons)

Aspect	Libel
Form	Written/visual
Nature	Permanent
Legal Nature	Civil wrong only (Tort)

2 Slander

Spoken or oral defamation

(e.g., speeches, spoken rumors, hand gestures)

Aspect	Slander
Form	Spoken/gesture
Nature	Temporary

Legal Nature **Civil wrong** only (not criminal in India unless under IPC)

🔍 Libel vs. Slander

Aspect	Libel	Slander
Form	Written, printed, visual	Spoken, gesture
Nature	Permanent	Temporary
Proof of damage	Not always required	Damage must usually be proved
Example	Newspaper cartoon	Rumor spread orally

◆ Defences in Defamation

Defence	Explanation
✓ Truth or Justification	If the statement is true , no defamation, even if it harms reputation
✓ Fair Comment	Honest opinion on public interest matters (e.g., reviews, criticism)
✓ Privilege	Statements made in certain situations are protected:
- Absolute Privilege	In Parliament, courts, or official proceedings – fully protected
- Qualified Privilege	Protected if made without malice (e.g., job reference, police reports)
✓ Consent	If the person agreed to the statement being made
✗ Apology	An apology is not a complete defence, but may reduce damages

Important Case Laws

✦ **D.P. Choudhary v. Kumari Manjulata (1997) – Rajasthan HC**

Facts:

- Newspaper falsely reported a girl ran away with a boy.

Held:

- Defamation proven. Damages of ₹10,000 awarded.
- ✓ False report harmed her reputation in society.

✦ **T.V. Ramasubramaniam v. A.M. Chakrapani (2005)**

Held:

- **Making public accusations** without proof constitutes defamation.

✦ **Subramanian Swamy v. Union of India (2016) – Supreme Court**

Held:

- **Criminal defamation** (under IPC Sections 499–500) is **constitutional**.
- ✓ Reputation is a part of **Article 21 – Right to Life**.

◆ Remedies in Defamation Cases

Remedy	Description
✓ Damages	Monetary compensation for harm to reputation
✓ Injunction	Restraining further publication
✓ Apology/Retraction	Court may direct to issue public apology
✓ Criminal Prosecution	Under IPC Sections 499 and 500 (up to 2 years imprisonment)

Unit – III: Tort Against Property – Trespass to Land

◆ What is Trespass to Land?

Trespass to land is an unlawful **direct interference with the possession of land** of another person **without permission or legal justification**.

- ✓ It is a **tort (civil wrong)** and protects the **possessor** of land — **not necessarily the owner**.

◆ Legal Definition

Trespass to land means **entry onto another person's land without lawful authority** or **remaining there unlawfully**, or **placing any object** on it.

🔴 **Mere intention is not enough** — the act must be **direct and physical**.

◆ Essentials of Trespass to Land

Element	Explanation
1. Unauthorized Entry	Defendant must enter or interfere with land without permission
2. Plaintiff in Possession	Plaintiff must be in actual or legal possession (not necessarily ownership)
3. Direct Interference	Entry must be physical and direct , not consequential
4. Without Legal Justification	Entry must be without any lawful excuse or authority

◆ Examples of Trespass

- Walking into someone's private property
- Throwing garbage into neighbor's yard
- Constructing a wall that extends into another's land
- Placing a ladder or equipment on someone's land without permission
- Staying after a lease expires

◆ Case Laws on Trespass

Entick v. Carrington (1765)

Facts:

- Government officials entered a person's house without lawful warrant.

Held:

- Entry was **unauthorized and illegal**.
✅ **Trespass** committed → even government agents are not exempt.

Bhagwandas v. Hiralal (AIR 1925 Nag 109)

Held:

- **Trespass may be committed even if no physical damage** occurs.
✅ Mere entry is sufficient for liability.

Kelsen v. Imperial Tobacco Co. (1957)

Facts:

- A signboard was projected into the airspace above plaintiff's land.

Held:

- **Even invasion of airspace** amounts to trespass.

◆ Continuing Trespass

If a person **remains on land unlawfully** or **allows an object to remain** after permission ends → it's a **continuing trespass**.

📌 *Example:* Staying on rental land after lease expiry without consent.

◆ Who Can Sue?

- The **possessor**, not necessarily the **owner**, can sue for trespass.
- Even a **tenant** or someone in **lawful possession** has the right to sue.

◆ Defences to Trespass

Defence	Explanation
✓ License / Permission	If the defendant had express or implied permission to enter
✓ Necessity	Entry to prevent greater harm (e.g., fire, rescue, saving life/property)
✓ Statutory Authority	Entry authorized by law (e.g., police with warrant, tax officials)
✗ Mistake	Not a valid defence – even if entry was accidental or based on wrong belief
✗ No Harm Caused	Damage is not essential for trespass claim

◆ Remedies for Trespass

Remedy	Explanation
✓ Damages	Monetary compensation for actual harm or symbolic (even ₹1)
✓ Injunction	Court order to stop the trespass or remove structure
✓ Ejectment	Order to remove the trespasser from the land
✓ Self-help (limited)	Lawful removal of trespasser if done reasonably and without violence

◆ Difference Between Trespass and Nuisance

Aspect	Trespass	Nuisance
Nature	Direct and physical interference	Indirect or consequential interference
Damage	Not necessary	Must show substantial harm
Possession Required	Yes	Yes

■ Unit – IV: Consumer Protection Act, 2019

◆ Introduction

The **Consumer Protection Act, 2019** replaced the **Consumer Protection Act, 1986** to make consumer laws **more effective and modern**, especially addressing **e-commerce and digital transactions**.

- ✦ **Enacted on:** 9 August 2019
- ✦ **Came into force:** 20 July 2020

◆ Objectives of the Act

- To **protect the interests of consumers**
- To provide **effective and quick redressal** of consumer disputes
- To establish **Consumer Protection Authorities and Commissions**
- To ensure **accountability of manufacturers, service providers, and sellers**

◆ Who is a "Consumer"?

■ Section 2(7) – Definition of Consumer

A **consumer** is any person who **buys goods or hires services** for **consideration**, but **not for resale or commercial purposes**.

✓ Includes **online and offline transactions**.

◆ **Rights of Consumers (Section 2(9))**

1. **Right to safety**
2. **Right to be informed**
3. **Right to choose**
4. **Right to be heard**
5. **Right to seek redressal**
6. **Right to consumer education**

■ **Unit – IV: Consumer Protection Act, 2019 – Key Definitions & Consumer Rights**

◆ **(i) Important Definitions under Consumer Protection Act, 2019**

All definitions below are taken from **Section 2** of the Consumer Protection Act, 2019.

1 **Consumer [Section 2(7)]**

A person who **buys goods or hires or avails services** for a **consideration** (paid, partly paid or promised), **not for resale or commercial use**.

- ◆ Includes: online, teleshopping, electronic means.
- ◆ *Exception:* If buying for **self-employment/livelihood**, it is still covered.

2 **Goods [Section 2(21)]**

As defined in the **Sale of Goods Act, 1930**:

All **movable property** other than actionable claims and money.

- ✓ Examples: Phone, laptop, car, books
- ✗ Not goods: Land, immovable property

3 **Services [Section 2(42)]**

Service of any description made available to users for consideration.

Includes:

- Banking
- Insurance
- Transport
- Telecom
- Housing
- Processing
- Electricity supply
- Online platforms

● Excludes:

- Free services
- Personal service (e.g., servant or employee)

Defect [Section 2(10)]

Any **fault, imperfection or shortcoming** in the **quality, quantity, potency, purity, or standard** of goods.

✓ Examples:

- Expired food
- Mobile phone not working
- Duplicate branded shoes

5 **Deficiency [Section 2(11)]**

Any **fault or inadequacy** in the **manner of performance of a service**.

✓ Examples:

- Delay in delivery
- Poor network from telecom
- Faulty banking service

Unfair Trade Practices [Section 2(47)]

Trade practices that are **misleading or deceptive** to the consumer.

✓ Includes:

- Misleading advertisements
- Fake offers
- Hoarding/black marketing
- False statements about quality or guarantee

 *Example:*

Selling old goods as “new” in online platforms.

7 **Restrictive Trade Practices [Section 2(41)]**

Practices that **manipulate prices or supply** and impose **unjustified costs or restrictions** on the consumer.

Examples:

- Tie-up sales (forcing to buy two products together)
- Delay in supply to raise price

8 **Manufacturer [Section 2(28)]**

A person who:

- **Makes or assembles** goods
- **Labels or puts their brand** on goods
- **Claims to be the producer**

 Example: Dabur India Ltd. manufacturing Chyawanprash = Manufacturer

9 **Trader [Section 2(38)]**

A person who **sells or distributes** goods, including **packers, marketers, and wholesalers**.

10 **Complaint [Section 2(6)]**

A written allegation by a consumer relating to:

- Unfair trade practice
- Defect or deficiency
- Overcharging
- Hazardous goods or services

Filed in: **Consumer Forum (District/State/National)**

◆ (ii) Consumer Protection Councils [Ch. II, Sections 3–9]

◆ 1. Central Consumer Protection Council [Section 3–4]

- Headed by **Union Minister of Consumer Affairs**
- Advises on policies to protect consumer rights
- Meets at least **once a year**

◆ 2. State Consumer Protection Council [Section 6–7]

- Headed by **State Minister in charge of consumer affairs**
- Meets **twice a year**

◆ 3. District Consumer Protection Council [Section 8–9]

- Chaired by **District Collector**
- Promotes and protects local consumer rights

◆ Role of Consumer Councils

Role	Example
Promote consumer awareness	Educate people about scams
Advise government on policy	Suggest improvements in law
Encourage ethical trade practices	Support fair pricing policies
Support grievance redressal	Assist in establishing mediation

◆ (iii) Rights of Consumers [Section 2(9)]

The Act recognizes the **following 6 rights** of every consumer:

Right	Explanation
1. Right to Safety	Protection against hazardous goods/services
2. Right to Information	Complete and accurate details of product/service
3. Right to Choose	Access to variety and freedom of selection
4. Right to be Heard	Consumer interests must be considered
5. Right to Seek Redressal	Compensation against unfair trade, defects, or deficiency
6. Right to Consumer Education	Awareness about consumer rights, duties, and laws

👤 Landmark Case Law

📖 **Lucknow Development Authority v. M.K. Gupta (1994 SC)**

Held:

- Definition of “service” includes **housing construction**.
- **Delay in housing delivery = deficiency** in service.
- ✓ Consumer had **right to seek redressal** and compensation.

Unit – IV: Consumer Protection Act, 2019 – Redressal Forums

◆ Redressal Mechanism under Consumer Protection Act, 2019

The Consumer Protection Act, 2019 provides a **3-tier quasi-judicial system** to resolve consumer disputes effectively:

Level	Forum Name
 Level 1	District Consumer Disputes Redressal Commission (DCDRC)
 Level 2	State Consumer Disputes Redressal Commission (SCDRC)
 Level 3	National Consumer Disputes Redressal Commission (NCDRC)

◆ 1. District Commission

 **Sections: 28–34**

✓ Jurisdiction

- Value of goods/services & compensation: **Up to ₹50 lakh**
- Complaint can be filed where:
 - Opposite party resides or works
 - Cause of action arises
 - Consumer resides or works (new provision)

✓ Composition

Post	Requirement
President	Current or former District Judge

Members (min 2) One should be a woman; must have knowledge of law, commerce, public affairs, etc.

✓ Powers

- Summon and enforce attendance
- Examine witnesses
- Order lab testing of goods
- Order **compensation, replacement or refund**
- Grant **punitive damages**
- Initiate **mediation** process

◆ 2. State Commission

 **Sections: 42–46**

✓ Jurisdiction

- Value: **More than ₹50 lakh up to ₹2 crore**
- Hears appeals from **District Commission** decisions

- Can revise decisions of District Commission (if needed)

✓ Composition

Post	Requirement
President	Current or former High Court Judge
Members (min 4)	One woman mandatory; expert in law, commerce, etc.

✓ Powers

- Same powers as District Commission
- Appellate authority for District decisions
- Can conduct **review** of its own orders

◆ 3. National Commission

📖 Sections: 53–58

✓ Jurisdiction

- Value: **More than ₹2 crore**
- Appeals from **State Commission**
- Reviews own orders and decisions
- Supervisory role over State Commissions

✓ Composition

Post	Requirement
President	Current or former Supreme Court Judge
Members (min 4)	One must be a woman; others with relevant qualifications

✓ Powers

- Can call for records from State Commissions
- Hears appeals from State-level orders
- Issues **binding decisions** nationwide
- Can transfer cases between States

📊 Summary Table: Redressal Commissions

Forum	President	Jurisdiction (Value)	Appeals Go To
District	District Judge	Up to ₹50 lakh	State Commission
State	High Court Judge	₹50 lakh – ₹2 crore	National Commission
National	Supreme Court Judge	Above ₹2 crore	Supreme Court (S. 67)

⚖️ Additional Provisions

Feature	Details
E-Filing	Complaints can be filed online on https://edaakhil.nic.in

Feature	Details
Mediation (Ch. V)	Commissions may refer cases to mediation cells for amicable settlement
Time Limit to Decide Case	Within 3 months (no testing) or 5 months (if analysis/testing required)
Appeal Time Limit	Within 45 days from order date, extendable by forum

Important Case Law:

 **V.K. Jain v. Union of India (2021, Delhi HC)**

Held:

- District Commissions can entertain complaints at **place of consumer's residence**
- ✓ Strengthens **consumer convenience** under 2019 Act.

Mediation under Consumer Protection Act, 2019

What is Mediation?

Mediation is an **alternative dispute resolution (ADR)** process where a **neutral third party (mediator)** helps the parties to settle their dispute **amicably and voluntarily**, without going through a full trial.

✓ It is **voluntary, confidential**, and **less time-consuming**.

Mediation under Consumer Protection Act, 2019

Chapter V – Sections 74 to 81

The **Consumer Protection Act, 2019** introduces a structured **mediation framework** to resolve consumer disputes **quickly, efficiently, and affordably**.

Objectives of Mediation

- Reduce burden on Consumer Commissions
- Ensure **speedy justice**
- Offer **cost-effective settlement**
- Maintain **friendly relations** between consumer and seller/service provide

When is Mediation Allowed?

Section 37(2)

Consumer Commissions (District, State, or National) can **refer the dispute to mediation, if there is a possibility of settlement**.

 Mediation is **not allowed** in:

- Cases involving serious fraud
- Criminal offences
- Medical negligence with grievous injury/death
- Cases impacting public interest

Consumer Mediation Cell

Section 74

A **Consumer Mediation Cell** shall be established at:

- **Each District Commission**

- Each State Commission
- The National Commission

👉 Maintains a **panel of mediators**, fixes schedules, and handles mediation logistics.

♦ Process of Mediation

Step	Description
1 Referral	Commission checks if the case is fit for mediation (S. 37)
2 Consent	Both parties must give written consent
3 Mediator Appointment	Mediator selected from approved panel (S. 75)
4 Confidential Proceedings	Mediation is private and informal
5 Settlement Agreement	If parties agree, mediator drafts a written settlement
6 Commission Approval	Commission passes an order based on agreement
7 Failure of Mediation	If mediation fails → case returns to commission for regular hearing

♦ Features of Consumer Mediation

Feature	Description
✅ Voluntary	Cannot be forced on parties
✅ Impartial Mediator	Mediator must be neutral and unbiased
✅ Confidentiality	No statements made in mediation can be used later in court
✅ Legally Binding Outcome	Once Commission passes order on agreement, it becomes enforceable
❌ No appeal	No appeal allowed against mediation agreement (S. 81)

♦ Time Limit

📖 Section 79

- Mediation must be completed within **3 months**
- Can be extended by **maximum 2 months**, if needed

📄 Format of Final Report (Rule 13, Mediation Rules 2020)

- If mediation **succeeds** → settlement report signed by both parties
- If mediation **fails** → failure report is submitted; no reasons are required

♦ Duties of Mediator

- Remain **neutral** and **unbiased**
- Help parties understand each other's viewpoints
- Ensure **voluntary agreement**
- Avoid coercion or legal advice
- Maintain strict **confidentiality**

⚖️ Legal Status of Mediation Settlement

Once a **settlement is signed and accepted** by the Commission → it becomes a **legal order, binding and enforceable** like a court judgment.

Important Notes

- **Mediation saves time and money**, and reduces pendency of cases
- **Parties can request mediation**, or the Commission may **propose it**
- Commissions ensure **fair and non-coercive process**

Product Liability – Consumer Protection Act, 2019

What is Product Liability?

Product Liability refers to the **legal responsibility** of a **manufacturer, seller, or service provider** to compensate the consumer for **harm caused by defective products** or **deficient services**.

✅ This is a **new and major feature** introduced under the **Consumer Protection Act, 2019**.

Relevant Sections: 82 to 87

(Chapter VI of the Act)

Objective of Product Liability

- To hold **manufacturers, sellers, and service providers accountable** for:
 - Defective goods
 - Harmful products
 - Unsafe services
- To promote **quality and safety standards** for consumers

Who can be held liable?

As per **Section 84**, a consumer can file a **product liability action** against:

1. **Manufacturer**
2. **Product Service Provider**
3. **Product Seller**

1 Liability of Manufacturer [Section 84]

The **manufacturer** is liable if:

Grounds

Defective design, manufacturing defect, or deviation from specification

No warning/instruction about **dangerous use**

Product does **not conform to express warranty**

Product fails to meet **reasonable safety expectations**

2 Liability of Service Provider [Section 85]

A **service provider** can be held liable when:

Grounds

Service is **deficient or faulty**

Grounds

There is **negligence** in the service

Service causes **harm, injury, or loss**

Failure to warn about **possible harm** during use of product/service

◆ 3 Liability of Product Seller [Section 86]

A **product seller** (retailer, distributor, etc.) is liable if:

Grounds

He **exercised substantial control** over the product

Modified or altered the product

Provided wrong/wrongful warranty

Did not exercise **reasonable care** in storing/handling

Sold product knowing it was defective

✦ **Note:** A seller is **not liable** if acting only as a **dealer or intermediary**, and the defect was caused solely by the manufacturer.

◆ Exceptions to Product Liability [Section 87]

Product liability action **will not arise** if:

- ✓ Product was **misused**, altered, or used against warnings
- ✓ Consumer ignored instructions or used the product carelessly
- ✓ Product was purchased for **commercial use** and not for personal use

◆ Types of Harm Covered

Product liability applies when the consumer suffers:

- **Personal injury or death**
- **Mental agony**
- **Loss of property**
- **Damage to goods**

✦ Harm must result **directly from the defective product or deficient service**.

◆ Case Example

📖 **V. Krishnakumar v. State of Tamil Nadu (2015)**

Facts:

- Child suffered complete blindness due to side effects of a medicine not properly tested.

Held:

- Manufacturer failed to meet **expected safety standard**.
 - ✓ Court awarded **compensation**, holding the company liable.

◆ Difference between Product Liability and Deficiency/Defect

Product Liability

Defect / Deficiency

Based on **harm caused** by product/service

Based on **faulty goods/services**

Covers manufacturer, seller, service provider

Usually applies to direct seller/service

May lead to **compensation for injury or death**

Limited to refund/replacement/repair

Legal Status

- A **product liability action** is treated as a **consumer complaint**
- Can be filed in District/State/National Commission, based on **value of compensation claimed**
- May result in **compensation, recall of product, ban, or punitive damages**

Motor Vehicles Act – Focus on Accident Victims & Insurance Company Liability

Overview of the Motor Vehicles Act

 The **Motor Vehicles Act, 1988** governs **registration, licensing, traffic rules, and accident liability** in India. Amended by the **Motor Vehicles (Amendment) Act, 2019** to include stricter penalties, digital claims, and **better protection for accident victims**.

Special Focus: Motor Vehicle Accident Victims & Insurance Company Liability

Rights of Victims of Motor Vehicle Accidents

1. Right to Compensation

Victims (or their legal heirs in case of death) have the **legal right to claim compensation** for:

- Bodily injury
- Death
- Permanent disability
- Property damage
- Mental agony and loss of earning capacity

Sections 166–168: Claim for Compensation

- Application can be filed by:
 - Victim
 - Legal heirs
 - Agent of the injured/deceased
- Filed before: **Motor Accident Claims Tribunal (MACT)**

2. Right to File Claim Without Proving Negligence

Section 140 – No-Fault Liability

Compensation is payable even **without proving fault**.

Situation	Compensation
Death	₹2,00,000
Permanent disablement	₹50,000

 Objective: To provide **quick relief** to victims.

📌 3. Right to Higher Compensation Under Fault Liability

📖 **Section 166** – Regular Claim

If **negligence is proved**, compensation can be higher than under no-fault liability.

📌 4. Right to Compensation via Hit and Run Scheme

📖 **Section 161** – Hit and Run Accidents

Where the identity of the driver/vehicle is **unknown**, compensation is paid from a **central government fund**.

Case	Amount Payable
Death	₹2,00,000
Injury	Up to ₹50,000

📌 5. Right to Appeal

📖 **Section 173** – Appeal to High Court

If the victim is not satisfied with the award of MACT, an appeal lies with the **High Court** within **90 days**.

🏛️ Motor Accident Claims Tribunal (MACT)

- Established under **Section 165**
- Deals with **civil claims** for compensation arising from road accidents
- More consumer/victim-friendly than civil courts
- No court fees
- Follows **summary procedure** for fast decisions

💎 Liabilities of Insurance Company

📖 **Relevant Provisions: Sections 146–150**

📌 1. Mandatory Insurance [Section 146]

No vehicle shall be driven without a **valid third-party insurance policy**.

✅ Ensures compensation to victim even if the **driver/owner is insolvent**.

📌 2. Extent of Insurance Company's Liability [Section 147]

The insurance company is liable to pay **compensation to third-party victims** for:

- Death or bodily injury
- Property damage
- Permanent disability

🔴 However, **liability for property damage is limited to ₹7,500 only**, unless higher cover is taken.

📌 3. Defences Available to Insurance Company [Section 149(2)]

Insurance company can deny liability **only on limited grounds**, such as:

- Driver had **no valid license**
- Vehicle used for **unauthorised purpose**
- Insurance policy was obtained by **fraud**
- Owner violated **policy conditions**

✓ In most other cases, the insurer must **first pay the victim**, and then may recover from owner/driver if needed.

📌 4. Doctrine of Pay and Recover

Court may direct insurer to **pay compensation first**, and later **recover** the amount from the owner if:

- Policy conditions were breached
- Vehicle was driven without license, etc.

📖 *Example Case:*

National Insurance Co. v. Swaran Singh (2004)

– Held: Insurer must pay compensation to victim and recover it from the insured later if driver had no license.

📌 5. Liability in Case of Gratuitous Passengers

As per **SC rulings**, insurer is **not liable** for gratuitous passengers unless policy explicitly covers them.

📖 *United India Insurance Co. v. Tilak Singh (2006)*

– Gratuitous passengers in private vehicle not covered unless special policy taken.

📖 Landmark Case Laws

1. Sarla Verma v. DTC (2009)

– Laid down formula for calculating **future prospects and compensation** in death cases.

2. Rajesh v. Rajbir Singh (2013)

– Held that **non-pecuniary damages** (loss of consortium, etc.) must be fairly compensated.

3. National Insurance Co. v. Swaran Singh (2004)

– Insurer must pay and then recover if there was breach of policy conditions.